

MUTUAL CONFIDENTIALITY AGREEMENT

Date: _____

Between the undersigned parties

Manengo bv, a private company, duly incorporated and governed under the Laws of Belgium, with registered office at Assestraat 11, 1790 Affligem, Belgium, registered within the Belgian Crossroads Bank of Enterprises under the number 0770.921.653 (RLE Brussels),
represented by Adriaan De Bolle

and

Apotheekhulp bv, a private company, duly incorporated and governed under the Laws of Belgium, with registered office at Wanzelesteenweg 98, 9260 Wichelen, Belgium, registered within the Belgian Crossroads Bank of Enterprises under the number 1010.352.295 (RLE Gent),
represented by Lieselot Van De Velde

Hereinafter separately referred to as the "Party" and jointly referred to as the "Parties".

Whereas

1. Manengo bv and Apotheekhulp bv can act as the "Disclosing Party"
2. Manengo bv and Apotheekhulp bv can act as the "Receiving Party"
3. Parties will be engaged in the Apotheekhulp platform development project, as defined below (hereafter called "Purpose")
4. In the framework of this Purpose, "Receiving Party" may have access to, become aware of or receive "Confidential Information" from the Disclosing Party. This Confidential Information needs to be kept secret and confidential. Therefore, Parties enter into this agreement.

Therefore, the parties agree as follows

Article 1. Definitions

All definitions used in this Confidentiality Agreement ("the Agreement") are explained in this article.

"Purpose": The specific object of the agreement, as referred to in article 2.

"Confidential Information": Means any and all information of any nature, documents, data, product samples, knowledge and know-how, including the terms and conditions of this Agreement and information disclosed or provided even prior to the date of this Agreement, in whatever form by the Disclosing Party to the Receiving Party in the framework of the Purpose.

Article 2. Object of the Agreement

2.1 Subject to the terms and conditions of this Agreement, the Disclosing Party shall disclose Confidential Information to the Receiving Party which it deems fit, necessary or required in the framework of the Purpose as described below.

2.2 More specifically, the Purpose of this Agreement is the development by Manengo bv of a web-based staff placement platform for Apotheekhulp bv (the "Project"). In the framework of the Project, both Parties may share Confidential Information including but not limited to: business processes and operational workflows, client and staff personal data and contact details, pricing structures and margin models, technical architecture and source code, and any other commercially sensitive information related to the activities of either Party.

More information about the project can be found on apotheekhulp.be.

Article 3. Confidentiality obligations

3.1 The Receiving Party agrees to (i) keep the Confidential Information secret and confidential, (ii) solely (permit to) use it in the framework of the Purpose, (iii) not directly or through any third party analyze for composition or structure, or reengineer or attempt to reengineer (or permit or facilitate such analysis or reengineering of), replicate or attempt to replicate in any manner, any sample or product provided hereunder, and (iv) not (permit to) disclose or publish it to any third party without the express written consent of the Disclosing Party or unless otherwise agreed thereto in the Agreement.

3.2 The Disclosing Party is and remains the exclusive owner of the Confidential Information. The Receiving Party shall not acquire any rights on such Confidential Information and no transfer of or license to the Intellectual Property in the Confidential Information is granted to the Receiving Party under this Agreement except as foreseen in the present Agreement. The Receiving Party is not entitled to claim legal protection or apply for the protection of Disclosing Party's Confidential Information without the prior written consent of the Disclosing Party.

3.3 The Receiving Party shall secure and protect the Confidential Information from any unauthorized access, use, storage, copying or disclosure using at least the same degree of care as the Receiving Party normally uses to protect its own Confidential Information, but not less than reasonable care.

3.4 The Receiving Party shall never use the Disclosing Party's Confidential Information to the latter's (commercial, financial or competitive) disadvantage.

3.5 The Receiving Party shall promptly notify the Disclosing Party if it suspects, or becomes aware of (i) any unauthorized use, storage, copying or disclosure of the Disclosing Party's Confidential Information, or (ii) other breach of this Agreement. In such an event, Receiving Party shall take all reasonable actions, after consultation with Disclosing Party, to restrain such unauthorized use, storage, copying or disclosure or breach and to limit any damages that could occur as a result thereof.

3.6 The Disclosing Party does not make any representations or warranties in relation to the Confidential Information and it is not liable for any loss of any kind arising from the Receiving Party's reliance or use of the Confidential Information.

Article 4. Disclosure of the Confidential Information

4.1 The Receiving Party is not entitled to disclose the Disclosing Party's Confidential Information to its employees and/or consultants without the prior written permission of the Disclosing Party. In any event, the Receiving Party must ensure that its employees and/or consultants comply with obligations of confidentiality that are at least as strict as the obligations imposed upon the Receiving Party under this Agreement. Receiving Party shall be fully and solely liable for any breach of the obligations of this Agreement by its employees.

At the request of the Disclosing Party and subject to compliance with applicable data protection laws and regulations, the Receiving Party shall notify the Disclosing Party on the names and other reasonable details of the employees and/or consultants to whom it has disclosed the Disclosing Party's Confidential Information under this Agreement.

4.2 The Receiving Party is entitled to disclose the Disclosing Party's Confidential Information to third parties to the extent required by law or court order, provided that the Receiving Party (i) first notifies the Disclosing Party in writing thereof (if possible) and (ii) cooperates with the Disclosing Party in seeking to legally prevent or avoid such disclosure, or to require that such disclosure is made subject to confidentiality obligations. The Receiving Party shall not disclose more information than the information expressly required and the relaxation of the obligations of confidentiality shall only last for as long as necessary to comply with the relevant law and shall apply solely for the purposes of such compliance.

Article 5. Limitations of Confidential Information

Parties agree that the following information shall not be considered to be "Confidential Information": information that

- at the time of disclosure, is already in the public domain;
- after disclosure, becomes a part of the public domain through no violation or breach of this Agreement or any other Agreement between the Parties;
- is proven, on the basis of documents, to be known by the Receiving Party prior to any disclosure under this Agreement;
- was obtained from a third party, who is lawfully in possession of such information and is not in violation or breach of any contractual or legal obligation of confidentiality with respect to such information;
- is disclosed further to the prior written approval of the Disclosing Party or its representatives;
- has to be disclosed by law or pursuant to a court order (see Article 4.2).

Confidential Information will not be deemed to be within the exceptions specified above merely because it is embraced by more general published or available information. In addition, any combination of features will not be deemed to be within the exceptions specified merely because individual features are published or available, but only if the combination itself is within the aforementioned exceptions.

The Party claiming the applicability of one of the aforementioned limitations shall bear the burden of proof thereof.

Article 6. Return and destruction of information

Upon first request of the Disclosing Party and in any case upon termination or expiration of the Agreement, the Receiving Party shall immediately return to the Disclosing Party all documents (and copies thereof) which contain, are based on, utilize or relate the Disclosing Party's Confidential Information. The Disclosing Party shall have the right to request destruction of the Confidential Information. In such an event, Receiving Party shall provide evidence of such destruction within 5 days as from the request for destruction.

The Receiving Party shall have the right to keep one copy of the Confidential Information to comply with applicable legislation and for the purpose of determining its ongoing obligations of nondisclosure and non-use. For the sake of clarity, Confidential Information contained in system-backup media, such as for example email backup tapes, need not be returned or destroyed so long as the backup media are maintained in confidence and are not readily accessible to users.

Article 7. Term and termination

7.1 The Agreement enters into effect on the earliest of the following events:

- the Date of this Agreement

- the first disclosure of Confidential Information from the Disclosing Party to the Receiving Party in the framework of the Purpose.

7.2 The Agreement shall automatically terminate in the event the Parties stop the Purpose for whatever reason. In case the Parties enter into a Service agreement of whatever nature further to the Purpose, the terms and conditions of this Agreement shall remain in full force and effect until the full execution of this separate agreement.

Notwithstanding the termination or expiration of this Agreement, the confidentiality obligations under this Agreement shall remain in effect (i) for ten (10) years from the date of termination or expiration of this Agreement or (ii) as long as the Confidential Information does not fall within the public domain, or (iii) for so long as such information remains a trade secret under applicable law, whichever event occurs last.

Article 8. Applicable law – competent court

This Agreement is governed by Belgian Law.

Both Parties will use their best endeavors to settle all matters in dispute amicably. If such amicable settlement is not possible, the dispute, controversy or claim arising out of or in connection with this Agreement shall be submitted to the Courts of Ghent.

Receiving Party acknowledges that any breach or violation of this Agreement might cause considerable commercial and financial damages to the Disclosing Party and that the mere compensation of such damages may be inadequate to compensate the Disclosing Party. Therefore, subject to the competent court's discretion, the Disclosing Party may seek for interim measures in interlocutory proceedings or a similar remedy to restrain any conduct or threatened conduct which is or would be a breach of this Agreement.

Article 9. Miscellaneous

9.1 This Agreement constitutes the entire understanding between the Parties related to the subject matter hereof. The terms and conditions of this Agreement can only be modified or amended by a written agreement between the Parties.

9.2 A failure or delay on the part of either Party to enforce a right, power, or privilege or exercise a remedy under this Agreement is neither to be construed or operate as a waiver or relinquishment of the right or remedy in whole or in part nor to preclude the enforcement or exercise in any other circumstances at any time or times in the future, unless otherwise intended in this Agreement. No waiver shall be effective unless given in writing and signed by a duly authorized representative of the Party giving the waiver.

9.3 If any provision of this Agreement is held by any court or other competent authority to be illegal, invalid or unenforceable in whole or in part under any applicable law, the legality, validity or enforceability of the remainder of this Agreement shall not be affected. This Agreement shall continue to be valid as to its other provisions and the remainder of the affected provision. Each Party shall use its best efforts to immediately negotiate in good faith a legally valid replacement provision so as to give effect as nearly as possible to the original invalid provision.

9.4 This Agreement may be executed in two or more counterparts, each of which shall be deemed an original, but which together shall constitute one and the same instrument.

9.5 The headings preceding the text of the sections and subsections hereof are inserted solely for convenience of reference, and shall not constitute a part of this Agreement, nor shall they affect its meaning, construction or effect.

This Agreement is signed on the date and in the place described below, and a number of copies equal to the number of Parties.

Signatures

For Manengo bv (Disclosing/Receiving Party)

Name: Adriaan De Bolle

Function: CEO

Company: Manengo bv

Date: _____

Place: _____

Signature: _____

For Apotheekhulp bv (Disclosing/Receiving Party)

Name: Lieselot Van De Velde

Function: Permanent Representative

Company: Apotheekhulp bv

Date: _____

Place: _____

Signature: _____

For Apotheekhulp bv – co-signature (optional)

Name: Carolien Van der Sypt

Function: Director

Company: Apotheekhulp bv

Date: _____

Place: _____

Signature: _____